

26NWCV00089 26NWCV00089

County: los-angeles

Division: Civil Law and Motion

Department: R

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Case Number: 26NWCV00089 Hearing Date: July 30, 2026 Dept: R

#15

TAHERIAN

v. CLW FOODS, LLC.

CASE

NO.: 26NWCV00089

HEARING: Thursday, July 30, 2026, at 9:30 AM

I.

Defendant

CLW FOODS, LLC's Motion to Compel Arbitration is DENIED. Defendant to Answer within 10 days.

II.

Plaintiff

SIAMAK TAHERIAN's Motion to Compel Responses to Request for Production, Set One is CONTINUED to Wednesday, September 2, 2026, at 9:30 AM in Dept. SE-R.

III.

Plaintiff

SIAMAK TAHERIAN's Motion to Compel Responses to Form Interrogatories, Set One is CONTINUED to Wednesday, September 2, 2026, at 9:30 AM in Dept. SE-R.

Moving

Party to give notice.

Background

On

January 8, 2026, Plaintiff SIAMAK TAHERIAN ("Plaintiff") filed this action against Defendants CLW FOODS, LLC and DOES 1 through 25, inclusive.

Plaintiff's

Complaint asserts the following causes of action:

(1) Discrimination in Violation of
Gov. Code §§12940 Et Seq;

(2) Failure to Prevent Discrimination
and Retaliation in Violation of Gov. Code §12940(K);

(3) Failure to Provide Reasonable
Accommodations;

(4) Failure to Engage in Good Faith
Interactive Process;

(5) Retaliation in Violation of Gov.
Code § 12940;

(6) Retaliation (Labor Code §98.6.);

(7) Wrongful Termination in Violation
of Public Policy;

(8) Work Environment Harassment;

(9) Intentional Infliction of
Emotional Distress; and

(10) Failure to Permit Inspection of
Copying of Records

On June 10,
2026, Defendant CLW

FOODS, LLC ("Defendant") filed the instant motion to compel arbitration.

Existence of Arbitration

Agreement Between the Parties

The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (*Engalia v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.)

"The FAA...preempts any state rule discriminating on its face against arbitration... [and] also displaces any rule that covertly accomplishes the same objective by disfavoring contracts that (oh so coincidentally) have the defining features of arbitration agreements." (*Kindred Nursing Centers Ltd. Partnership v. Clark* (2017) 137 S.Ct. 1421, 1426.) "But a court may 'invalidate an arbitration agreement based on 'generally applicable contract defenses' without violating the FAA, so long as it does not apply a generally applicable defense 'in a fashion that disfavors arbitration.' [Citation Omitted.]" (*Garcia v. KND Development 52, LLC* (2020) 58 Cal.App.5th 736, 744.)

In support of the instant Motion, Defendant submits an Agreement to arbitrate the disputes at issue in this action. (Elias Decl., Ex. B.) Defendant provided Plaintiff with a physical copy of the Agreement and Plaintiff provided a physical signature after reviewing the Agreement. (Id. at ¶ 6.)

The Agreement reads:

"Siamak Taherian ('Employee') and CLW FOODS LLC ('the Company') agree to the mutual resolution by binding arbitration of claims between them. This Agreement covers all claims or causes of action the Company may have against Employee, or that Employee may have against the Company, its officers, Directors, employees, agents, subsidiaries, affiliates, successors, and assigns, whether based in tort, contract, statutory, or equitable law, or otherwise. This Agreement is also a waiver of class action and representative

claims, and by signing this Agreement, Employee agrees that he or she will not assert class action or representative action claims against the Employer, and that all claims, including claims brought under California Labor Code § 2698 et. seq., will be subject to arbitration in an individual capacity under this Agreement. The only claims excluded by this Agreement are claims not permitted to be arbitrated by law. In addition, this Agreement shall not be interpreted to restrict the Parties' rights to seek provisional injunctive relief in an appropriate forum"

(Elias Decl., Ex. B ¶ 1.)

The Court finds Defendant met its initial burden to prove the existence of an arbitration agreement.

Unconscionability

Plaintiff

contends that the Arbitration Agreement is unenforceable because it is unconscionable.

The

party seeking the defense of unconscionability bears the burden of proof. (Sanchez v. Valencia Holding Co., LLC (2015) 61 Cal.4th 899, 911. "[T]he doctrine of unconscionability has both a procedural and substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." (Id. at 910.) "Oppression occurs where a contract involves lack of negotiation and meaningful choice, and surprise occurs where the allegedly unconscionable provision is hidden within a prolix printed form." (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 247.) "The procedural element of an unconscionable contract generally takes the form of a contract of adhesion, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it." (Little v. Auto Stiegler, Inc. (2003) 29 Cal.4th 1064, 1071.)

"[Procedural

and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability. [Citation].... The unconscionability doctrine

ensures that contracts [] do not impose terms that have been variously described as ‘overly harsh,’ [citation], ‘unduly oppressive,’ [citation], ‘so one-sided as to shock the conscience,’ [citation] or ‘unfairly one-sided.’ [citation]. All of these formulations point to the central idea that unconscionability doctrine is [] concerned [] with terms that are ‘unreasonably favorable to the more powerful party.’ (Sanchez, supra, 6 Cal.4th at 910-911.) If the Court finds that an agreement to arbitrate or any clause of such an agreement is unconscionable, the Court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result. (Cal. Civ. Code §1670.5(a).)

Procedural Unconscionability

Plaintiff

argues that the Agreement is procedurally unconscionable because it is a contract of adhesion.

The

Agreement is an adhesion contract drafted by the stronger party, and Plaintiff had to sign it as a condition of employment. “By itself, however, adhesion establishes only a ‘low’ degree of procedural unconscionability.” (Davis v. Kozak (2020) 53 Cal.App.5th 897, 907.) This standard applies even where the employee had to sign “ ‘as a condition of employment.’ ” (Id. at p. 906.)

Plaintiff

further argues that Defendant only allowed five minutes for review, in a one on one meeting, where Plaintiff did not have access to a lawyer. However, Plaintiff offers no evidence to support its contentions. In fact, Plaintiff offers no declaration testimony at all. Indeed, Plaintiff does not attest he needed more time to review the Agreement, that he needed a lawyer to understand the Agreement, or that Defendant threatened him into signing the Agreement.

Instead,

Ms. Elias declared that she made herself available for questions and that Plaintiff did not ask for additional time to read the Agreement. (Elias Decl.,

Plaintiff

also argues the Agreement fails to provide the procedural rules governing arbitration. Indeed, Defendant fails to specify what procedural rules will govern arbitration. The failure to provide notice of the rules applicable for the arbitration weighs in favor of procedural unconscionability. (Shahtout by and through Shahout v. California Psychcare, Inc. 562 F.Supp.3d 913, 928.) Here, Defendant's Arbitration Agreement does not even specify which procedural rules govern arbitration.

The

Court finds a low amount of procedural unconscionability.

Substantive Unconscionability

Scope

and Duration

Plaintiff

argues the Agreement is substantively unconscionable due to its indefinite scope and infinite duration.

Regarding

the Agreement's scope, Plaintiff cites *Cook v. University of Southern California* in which the court found that the scope of an arbitration agreement was substantively unconscionable where it "require[d] the arbitration of 'all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University . . .'" (*Cook v. Univ. of S. California* (2024) 102 Cal.App.5th 312, 321–22, 325, reh'g denied (June 13, 2024).) "The plain language of the agreement require[d]" plaintiff to arbitrate claims "unrelated to her employment," was unconscionably broad. (*Ibid.* ["It is difficult to see how it is justified to expect Cook—as a condition of her employment at the university—to give up the right to ever sue a USC employee in court for defamatory statements or other claims that are completely unrelated to Cook's employment."].)

Here,

the Arbitration Agreement applies to: "all claims or causes of action the Company may have against Employee, or that Employee may have against the Company, its officers, directors, employees, agents, subsidiaries, affiliates,

successors, and assigns, whether based in tort, contract, statutory, or equitable law, or otherwise. (Elias Decl., Ex. B ¶ 1.) The Agreement covers claims which would arise outside of Plaintiff's employment.

Indeed, while Defendant argues that Agreement says it is a "Mutual Agreement to Arbitrate Employment Disputes", the Agreement itself does not explicitly limit the scope of arbitration only to claims arising out of Plaintiff's employment, as Defendant suggests.

As to the Arbitration Agreement's duration, it provides:

"This Agreement supersedes any prior or contemporaneous agreement on the subject, shall survive the termination of Employee's employment, and may only be mutually revoked or modified in a written document that expressly refers to the "Agreement to Arbitrate Employment Disputes" signed by with Employee and an authorized representative of the Company."

(Elias Decl., Ex. B, ¶ 7.)

A similar provision regarding duration was at issue in Cook:

"The arbitration agreement specifically provides that it will survive unless and until Cook and USC's president specifically terminate the agreement in a writing, signed by both parties, which expressly mentions the arbitration agreement. As in Zee, this is an express term of duration; thus Reigelsperger does not apply. However, the inclusion of such language also shows the parties did not contemplate that the arbitration agreement would be terminable at will.

We reject the argument that the arbitration agreement is terminable at will after a reasonable time and find the trial court did not err in holding the duration of the arbitration agreement is substantively unconscionable."

(Cook

v. Univ. of S. California (2024) 102 Cal.App.5th 312, 326.)

Here, as

in Cook, the Arbitration Agreement is not terminable at will but rather only upon the express agreement of both parties, and it survives post-termination.

The

Court finds a high degree of substantive unconscionability.

Severability

Civil

Code section 1670.5, subdivision (a) is a statute that provides general guidance regarding the severability of contract provisions:

“If

the court as a matter of law finds the contract or any clause of the contract to have been unconscionable at the time it was made the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may so limit the application of any unconscionable clause as to avoid any unconscionable result.” (Id.)

The

Court of Appeal in Armendariz, in determining whether an unconscionable provision in an employment contract was severable, elaborated:

“Two

reasons for severing or restricting illegal terms rather than voiding the entire contract appear implicit in case law. The first is to prevent parties from gaining underserved benefit or suffering undeserved detriment as a result of voiding the entire agreement. . . . Second, more generally the doctrine of severance attempts to conserve a contractual relationship if to do so would not be condoning an illegal scheme. [Citations.] The overarching inquiry is whether “the interests of justice ... would be furthered” by severance. [Citation.]” (24 Cal.4th at pp. 123-124.)

Here,
the unconscionable provision is not severable. This is a case where the agreement is permeated with unconscionability as a result of multiple objectionable terms. (Abramson v. Juniper Networks, Inc. (2004) 115 Cal.App.4th 638, 666 [finding substantive unconscionability where “the arbitration provisions . . . are entirely lacking in mutuality and basic fairness”].)

Indeed,
the offending provisions deal with the scope of the Agreement. The Court finds that the indefinite scope and duration is unconscionable, and thus no valid provision of the Agreement binds Plaintiff to arbitration.

CONCLUSION

The
motion to compel arbitration is DENIED. Defendant to Answer within 10 days.

Defendant’s
Request for Judicial Notice is GRANTED. (Evid. Code § 452(d).)

The
Court notes Plaintiff’s opposition reference “Plaintiff’s Request for Judicial Notice” (Opp. at p. 2:2.) However, Plaintiff did not file any documents alongside the opposition.

The
Court on its own motion continues Plaintiff’s Motions to Compel to allow Counsel the opportunity to meet and confer about pending discovery.